

VRINDA BHANDARI

GUEST COLUMN

Why Marital Rape Qualifies as Rape

In the second week of May, the Delhi High Court passed a split verdict on the issue of whether the marital rape exception engrafted in Section 375 of the Indian Penal Code (IPC) was constitutional or not. Exception 2 to Section 375 reads as follows, "Sexual intercourse or sexual acts by a man with his own wife, the wife not being under 15 years of age, is not rape."

Justice Rajiv Shakdher struck down the marital rape exception (MRE) as being violative of Articles 14, 15(1), 19(1)(a) and 21 of the Constitution, while Justice Hari Shanker held that the MRE was constitutionally valid. Given the split decision and the importance of the issue, the judges unanimously granted a certificate of leave to appeal to the Supreme Court. Appeals have already begun to be filed by the parties before the apex court. It is expected that instead of the matter being referred to a three-judge bench in the Delhi High Court, it will be decided straightaway in the Supreme Court. Till then, however, the MRE will continue on the statute books in India.

The split verdict reveals two completely different worldviews held by the two judges. As Justice Shakdher notes, the colonial history of MRE discloses that it is "steeped in patriarchy and misogyny", and has contributed to the diminishing of freedoms won by human beings. His judgment centres the autonomy, dignity and privacy of a woman, with the institution of marriage receding in the background. Thus, he observes that marital rape "needs to be called out as rape" as a way for society to express its "disapproval" concerning the husband's conduct.

For Justice Shankar, the MRE does not violate the equality guarantee under Article 14 of the Constitution since there was an "intelligible differentia" between rape committed by a husband within a marriage, and rape committed—whether by an intimate partner or a stranger—outside marriage. Justice Shankar's opinion differs starkly from Justice Shakdher in the importance it gives to the institution of marriage and the "legitimate expectation" of sex in a marriage and the fact that sex between a husband and wife is "sacred". This is despite his recognition that there may be marriages between unequals, marriages may be good or bad, or happy and sad.

Only around 32 countries in the world continue to decriminalise marital rape. It is unfortunate that India has still not been able to move out of this dubious list

In all this, the State—whether the Centre or the Delhi government—notably did not take any stand on the issue, whether in support of or against the MRE. The Centre only sought time for further consultation given the importance of the issue.

WHY THE EXCEPTION

The history of MRE can be traced back to the doctrine expounded by the 17th century judge, Sir Mathew Hale, who published a treatise in 1736, titled 'History of the Pleas of the Crown'. He argued for an MRE, since, once a woman consented to marry, "the wife hath given up herself in this kind unto her husband, which she cannot retract". Additionally, he also viewed women as secondary citizens who must be criminally punished for abortion and he sentenced two widows to death during a witchcraft trial for "bewitching" their neighbours. In fact, in the recently leaked draft opinion of the US Supreme Court in *Thomas Dobbs vs. Jackson Women's Health Organisation*, Justice Samuel Alito relied on Sir Hale to overturn the decades-old abortion rights jurisprudence established by *Roe vs. Wade*.

Given the misogynistic and patriarchal origins of the MRE, it is perhaps no surprise that in most countries, whether in the UK, US, Canada, South Africa, Israel or Russia, marital rape is treated as rape or sexual assault and is criminally punished. Only around 32 countries in the world—among them, Bangladesh, China, Haiti, Laos, Mali, Myanmar, Nigeria, Senegal, Afghanistan, Tajikistan, Lebanon, Malaysia, Singapore, Egypt, Libya, Oman, Yemen and Kuwait—continue to